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CASE #	CASE NAME	HEARING NAME
CVME2502267	SAXON VS NORTH COUNTY SAND & GRAVEL, INC.	PLAINTIFF'S MOTION TO VACATE DISMISSAL

Tentative Ruling: Motion to vacate dismissal is granted. CMC is set on 10-22-26 8:30 AM, Dept. M301. Plaintiff will give notice of order and upcoming hearing.

2.

CASE #	CASE NAME	HEARING NAME
CVME2606622	HANNA VS WINCHESTER TRAILS, INC.	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction is Denied.

Plaintiff, Michael James Hanna, alleges he owns and resides at 33070 Big Range Dr. in Murrieta (Winchester) in a common interest development known as Winchester Trails, which is subject to CC&Rs and is operated by Defendant, Winchester Trails, Inc. (HOA). Plaintiff is a permanently disabled veteran who suffers from physical and mental impairments that limit his life activities. On 8/15/25, Plaintiff submitted a written request for a reasonable accommodation to park an RV in the driveway due to his disability. The HOA temporarily paused enforcement, requested additional information, and thereafter refused to grant the accommodation. Plaintiff alleges that the HOA has routinely sent employees to photograph the property without his consent for enforcement purposes, which he objected to in writing. Other homeowners park RVs for extended periods without comparable enforcement action by Defendants. He also alleges the HOA's Board lacks authority to engage in enforcement and other activities. On 4/6/26, Defendant, The Management Trust, notified Plaintiff that a lien had been placed on the property and demanded \$391.62., which Plaintiff characterizes as selective and retaliation.

Plaintiff filed his Complaint on 5/14/26 alleging eight causes of action: 1) violation of Fair Employment and Housing Act (FEHA) – failure to provide reasonable accommodation and retaliation; 2) violation of FEHA; 3) violation of the Unruh Civil Rights Act; 4) declaratory relief; 5) injunctive relief; 6) intentional infliction of emotional distress; 7) negligent infliction of emotional distress; and 8) breach of fiduciary duty.

Plaintiff, Michael James Hanna, brings this OSC Re: Preliminary Injunction to prohibit Defendants from CC&R enforcement activities. (CCP §§ 526(a)(2)-(4), 527(c)(1).) Plaintiff argues he is trying to preserve the status quo while this action proceeds; that a recorded lien would cloud title to his home and violate his housing rights; that the HOA continues to add pre-lien charges, which has affected Plaintiff's credit; that the HOA improperly authorizes expenditures that primarily benefit directors; that Plaintiff establishes a reasonable probability of prevailing on his causes of action; that the balance of harms favors Plaintiff; and, that the undertaking should be waived or set nominally.

Defendants, HOA, *et. al.*, oppose the OSC arguing that the requested interim restrictions are extraordinary; that Plaintiff's pleadings/exhibits establish substantial